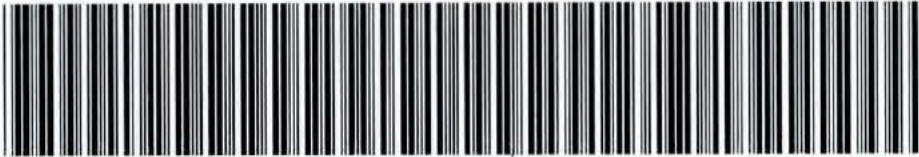


DIO7-044

EWR D&I ANNOTATION

FAN-000001L064001DP436-6531

Artemis # : 000001L064001DP436**Record Created Date :** 09/27/2007**Printed Date :** 10/09/2007**Description :**

THE DRIVER OF THE SUBJECT VEHICLE WAS TRAVELING NORTHBOUND ON A COUNTY ROAD WHEN THE VEHICLE VEERED OFF THE ROAD SURFACE AND STUCK A TREE HEAD-ON. THE DRIVER WAS PARTIALLY EJECTED AND SUFFERED INJUIRES, A PASSENGER SUFFERED FATAL INJURIES UPON IMPACT. THE DECEDENT'S ATTORNEY ALLEGES THE AIRBAG SYSTEM WAS DEFECTIVE. THE POLICE REPORT INDICATES THAT ALCOHOL AND TEST RESULTS ARE PENDING. THE POLICE REPORTS INDICATES THAT THE INVESTIGATING POLICE BELIEVE THE DRIVER WAS INTOXICATED. THE POLICE ALSO INDICATED THE DRIVER WAS CITED FOR INTOXICATION MANSLAUGHTER, UNSAFE SPEED, AND THE DRIVER WAS NOT SECURED BY A SEAT BELT. THE VEHICLE MANUFACTURER DID NOT SUBMIT AN ASSESSMENT OF THIS CRASH INCIDENT.

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Ave., S.E.
Washington, D.C. 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

MAY - 7 2007

Ms. Gay Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217ph
DI07-044

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors (GM) in its light early warning report from 4th quarter of 2006. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 30, 40, 88, 91, 103, 116, 135, 137, 140, 155, 221, 244, 246, 256, 257, 273, 274, 285, 295, 345, 360, 368, 401, 424, 436, 439	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the table above.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.



VEHICLE SAFETY HOTLINE
888-327-4236

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

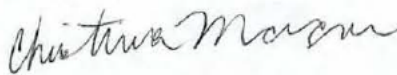
This letter is being sent to GM pursuant to 49 U.S.C. § 30166, which authorizes NHTSA to conduct any investigation that may be necessary to enforce Chapter 301 of Title 49 and to request reports and the production of things. It constitutes a new request for information. GM's failure to respond promptly and fully to this letter could subject GM to civil penalties pursuant to 49 U.S.C. § 30165 or lead to an action for injunctive relief pursuant to 49 U.S.C. § 30163. (Other remedies and sanctions are available as well.) Section 5(a) of the TREAD Act, codified at 49 U.S.C. § 30165(b), provides for civil penalties of up to \$5,000 per day, with a maximum of \$16,050,000 for a related series of violations, for failing or refusing to perform an act required under 49 U.S.C. § 30166. See 49 CFR 578.6 (as amended by 69 Fed. Reg. 57864 (Sept. 28, 2004)). This includes failing to respond to ODI information requests.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590.

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **June 8, 2007**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS NORTH AMERICA
Structure & Safety Integration

June 7, 2007

Ms. Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
National Highway Traffic Safety Administration
400 Seventh Street, S.W.
Washington, DC 20590

NVS-217ph
DI07-044

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated May 7, 2007 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from 4th quarter of 2006.

GM's response is comprised of 29 CDs for the incidents that are the subject of DI07-044.

Attachment "A" includes instructions for navigating the CD. Each CD, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 256 210873110 - 625130 and 2004 Chevrolet Suburban 1500. When the CD is launched, this identification number appears again along with all of the documents (including photographs and videos) on the CD listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 256 210873110 - 625130 **_00_Request and Responses**. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the first two Inquiries and Responses in the index for the CD are as follows:

DI07-044
256 210873110 - 625130
2004 CHEVROLET SUBURBAN 1500

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

256 210873110 - 625130 **_01_1** - is the first document responsive to Inquiry no. 1.
256 210873110 - 625130 **_02_1** - is the first document responsive to Inquiry no. 2.

Product Investigations

Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
DI07-044 Response.doc



Letter to Ms. Christina Morgan
 DI07-044 Response
 June 7, 2007
 Page 2 of 5

Your inquiries and our corresponding replies are as follows:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

The table below lists the incidents that are the subject of DI07-044, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR), or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further. As such, the document included in response to Inquiry 1 that can be found on the enclosed CD for the PAR and Rumor case listed in the table, may not be a claim or notice of the type generally defined as such by §579.4(c).

(26 Vehicles from the Light Vehicle Template)			
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)		TYPE
✓ 30	1G6DP577770		NISM
✓ 40	1G6KD54Y05U		NISM
✓ 88	1G1AK52F657		RUMOR
✓ 91	1G1AK52F957		RUMOR
✓ 103	1G1AL15F877		NISM
✓ 116	1GNFG15T851		LIT
✓ 135	2G1WH52K349		NISM
✓ 137	2G1WH52K249		NISM
✓ 140	2G1WF52E159		LIT
✓ 155	1G1ND52J83M		NISM
✓ 221	2GCEC19T041		LIT
✓ 244	1GCHK29U23E		LIT
✓ 246	1GCHK23225F		LIT
✓ 256	1GNFK16T74J		LIT
✓ 257	3GNFK16T64G		RUMOR
✓ 273	1GNEC13V74J		LIT
✓ 274	1GNEC13TX5R		LIT
✓ 285	1GNDS13S822		LIT
✓ 295	1GNDT13S542		RUMOR
✓ 345	1GTEC14T74Z		LIT
✓ 360	1GKEC16Z14R		LIT
✓ 368	5GTDN136468		RUMOR
✓ 401	1G2ZG58B574		NISM
✓ 424	2G2WP552661		RUMOR
✓ 436	1G8AJ52F14Z		LIT
✓ 439	1G8AJ55F96Z		NISM

Letter to Ms. Christina Morgan
DI07-044 Response
June 7, 2007
Page 3 of 5

2. Provide a copy of the Police Accident Report.

Response: See Attached Documents.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

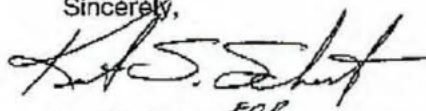
To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators, and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,



Gay P. Kent

Director

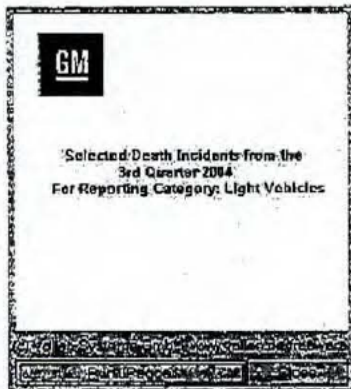
Product Investigations

Enclosures: 29 Discs
Attachment A

Letter to Ms. Christina Morgan
 DI07-044 Response
 June 7, 2007
 Page 4 of 5

Attachment A Instructions for using CD Viewer

1. Insert the CD into the CD ROM drive; the CD will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.

Step 5 Select Page Icon

Step 5 Previous Page Icon (Ctrl +PgUp)

Step 5 Next Page Icon (Ctrl +PgDn)

Step 8 Scale Image Icons (F6, F7, & F8)

Step 4 Image List

Request for Information:

1. Provide a copy of the claim or notice that notified General Motors of the incident, including any attachments and supplementary records, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
- Response: See Attached Documents
2. Provide a copy of all documents received from the claimant(s) or the claimant's representative that identify and/or support or dispute support any allegation of a defect in the vehicle, regardless of whether the General Motors-dealer or the claimant is the party.
- Response: See Attached Documents
3. Provide a copy of all investigative documents prepared by any local, state or Federal governmental agency or personnel related to the incident, including but not limited to police accident report(s).
- Response: See Attached Documents
4. Provide a copy of all diagrams and drawings that relate to the incident, including post-incident reconstruction.
- Response: See P3
5. Provide a copy of all documents, photographs or videos that relate to the incident, or the vehicles involved in the incident, including materials related to the progression, cause, or resolution of any injury.
- Response: See Attached Photograph and Attached Documents

1997 CHEVROLET VENTURE
 335 6258861-466779

File Name	Size	Date	Time	Type
335 6258861-4667...	597 KB	4/23/2004	5:23 PM	D:\Images
335 6258861-4667...	420 KB	4/23/2004	5:23 PM	D:\Images
335 6258861-4667...	1.0 MB	4/23/2004	5:25 PM	D:\Images
335 6258861-4667...	8.5 MB	4/23/2004	6:04 PM	D:\Images
335 6258861-4667...	714 KB	4/23/2004	6:09 PM	D:\Images
335 6258861-4667...	417 KB	4/23/2004	7:13 PM	D:\Images
335 6258861-4667...	9.1 MB	4/23/2004	6:09 PM	D:\Images
335 6258861-4667...	9.8 MB	4/23/2004	6:14 PM	D:\Images
335 6258861-4667...	590 KB	4/23/2004	6:16 PM	D:\Images
335 6258861-4667...	480 KB	4/23/2004	6:17 PM	D:\Images
335 6258861-4667...	1.0 MB	4/23/2004	6:21 PM	D:\Images
335 6258861-4667...	11.5 MB	4/23/2004	6:25 PM	D:\Images
335 6258861-4667...	652 KB	4/23/2004	6:31 PM	D:\Images
335 6258861-4667...	414 KB	4/23/2004	6:33 PM	D:\Images
335 6258861-4667...	1.0 MB	4/23/2004	6:36 PM	D:\Images
335 6258861-4667...	10.1 MB	4/23/2004	6:39 PM	D:\Images
335 6258861-4667...	0.6 MB	4/23/2004	6:43 PM	D:\Images
335 6258861-4667...	0.4 MB	4/23/2004	7:10 PM	D:\Images
335 6258861-4667...	8.4 MB	4/23/2004	7:13 PM	D:\Images
335 6258861-4667...	702 KB	4/23/2004	7:16 PM	D:\Images
335 6258861-4667...	495 KB	4/23/2004	7:17 PM	D:\Images
335 6258861-4667...	1.1 MB	4/23/2004	7:18 PM	D:\Images
335 6258861-4667...	4.9 MB	4/23/2004	7:23 PM	D:\Images
335 6258861-4667...	528 KB	4/23/2004	7:25 PM	D:\Images
335 6258861-4667...	2.7 MB	4/23/2004	7:26 PM	D:\Images
335 6258861-4667...	705 KB	4/23/2004	7:27 PM	D:\Images
335 6258861-4667...	421 KB	4/23/2004	7:29 PM	D:\Images
335 6258861-4667...	1.3 MB	4/23/2004	7:29 PM	D:\Images
335 6258861-4667...	746 KB	4/23/2004	7:36 PM	D:\Images
335 6258861-4667...	441 KB	4/23/2004	7:39 PM	D:\Images
335 6258861-4667...	1.2 MB	4/23/2004	7:40 PM	D:\Images

Product Investigations

Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
 DI07-044 Response.doc



Letter to Ms. Christina Morgan
DI07-044 Response
June 7, 2007
Page 5 of 5

- Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl +PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl +PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
- By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl +PgDn** or **Ctrl +PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
- Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
- If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

[illegible]

DI07-044
436 210872960 – 624610
2004 SATURN ION

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

CAUSE NO. (b) (6)

IN THE DISTRICT COURT OF VAN ZANDT COUNTY, TEXAS
ATTORNEY FOR PLAINTIFF/PLAINTIFF

KAREN WILSON, DISTRICT CLERK
121 E.DALLAS, COURTHOUSE ROOM 302
CANTON, TEXAS 75103
903-567-6576

ALVIN N. FLYNN
200 E. FERGUSON #205
TYLER TX 75702

CITATION FOR PERSONAL SERVICE

THE STATE OF TEXAS

NOTICE TO DEFENDANT:

YOU HAVE BEEN SUED. YOU MAY EMPLOY AN ATTORNEY. IF YOU OR YOUR ATTORNEY DO NOT FILE A WRITTEN ANSWER WITH THE CLERK WHO ISSUED THIS CITATION BY 10:00 A.M. ON THE MONDAY NEXT FOLLOWING THE EXPIRATION OF TWENTY DAYS AFTER YOU WERE SERVED THIS CITATION AND THIS COURT A DEFAULT JUDGMENT MAY BE TAKEN AGAINST YOU.

To: **GENERAL MOTORS CORPORATION**
SERVING ITS REGISTERED AGENT
C.T. CORP SYSTEM
350 NORTH ST PAUL
DALLAS, TEXAS 75201

**THIS COPY OF PROCESS WAS
DELIVERED TO YOU ON THE
10 DAY OF Nov 20th
MIKE DUPREE, Constable 10/15
Precinct 5, Dallas County, TX
By Avila Deputy**

DEFENDANT- GREETINGS:

You are hereby commanded to appear by filing a written answer to the

PLAINTIFF'S ORIGINAL PETITION

at or before ten o'clock a.m. of the Monday next after the expiration of twenty days after the date of service of this citation before the Honorable District Court of VAN ZANDT County, Texas at the Courthouse of said County in Canton, Texas.

PLAINTIFF'S ORIGINAL PETITION

was filed in said court of the 31st of October, 2006 in this cause (b) (6) on the docket of said court & styled:

(b) (6) INDIVIDUALLY
AS REPRESENTATIVE OF THE ESTATE
OF (b) (6) DECEASED
, (b) (6) INDIVIDUALLY
AND (b) (6) AS
NEXT FRIEND FOR (b) (6)
, MINORS

vs. **GENERAL MOTORS CORPORATION AND
SATURN OF TYLER, LTD**

The nature of this demand is fully shown by a true and correct copy of the petition, accompanying this citation and made a part hereof.

The officer executing this writ shall promptly serve the same according to requirements of law, and mandates thereof, and make due return as the law directs.

Issued and given under my hand and seal of said court at Canton,
31st of October, 2006 .
RESPONDENT'S COPY

KAREN WILSON, DISTRICT CLERK

TA000092899

BY *Steve Schaffer*, Deputy

SHERIFF'S RETURN

Came to hand the _____ day of _____ A.D. 20____,
at _____ o'clock _____ m., and executed at _____, within the County of _____
_____ at _____ o'clock _____ m. on the _____ day of _____,
20____, by delivering to the within named _____,
in person, a true copy of this citation together with the accompanying copy
of the petition, having first attached such copy of such petition to such
copy of citation and endorsed on such copy of citation the date of delivery.

Total Service Fee \$_____

Sheriff _____ County, Texas

BY _____ Deputy

NO. [REDACTED] (b) (6)

(b) (6), INDIVIDUALLY §
AND AS REPRESENTATIVE OF THE §
ESTATE OF (b) (6) §
DECEASED; (b) (6) §
INDIVIDUALLY; AND (b) (6) §
(b) (6) AS NEXT FRIEND FOR §
(b) (6) §
, MINORS §

VS.

GENERAL MOTORS CORPORATION
AND SATURN OF TYLER, LTD

IN THE 294TH JUDICIAL

DISTRICT COURT

VAN ZANDT COUNTY, TEXAS

FILED FOR RECORD
2006 OCT 31 PM 1:38
CLERK
VAN ZANDT COUNTY, TEXAS

PLAINTIFFS' ORIGINAL PETITION

TO THE HONORABLE JUDGE OF SAID COURT:

NOW COME (b) (6), Individually and as Representative of the Estate of (b) (6)
(b) (6), Deceased; (b) (6), Individually; and (b) (6) as Next
Friend for (b) (6) and (b) (6) Minors, hereinafter called
"Plaintiffs", complaining of General Motors Corporation and Saturn of Tyler, LTD, hereinafter
called "Defendants" or by name, and for cause of action would respectfully show the Court and
Jury the following:

I.

Discovery in this cause of action will be conducted under Rule 190.2 (Level 2) of the
Texas Rules of Civil Procedure unless otherwise amended.

II.

Plaintiff (b) (6) is an individual and resident of Canton, Van Zandt County, Texas.

Plaintiff (b) (6) is a citizen of the State of Wisconsin and resides in Irma, Lincoln County, Wisconsin Texas.

Plaintiff (b) (6) and her two minor plaintiff daughters are citizens of the State of Louisiana and reside in Haughton, Bossier Parish, Louisiana.

Defendant General Motors Corporation is a corporation foreign to the State of Texas being duly organized and incorporated under the laws of the State of Delaware and having its principal place of business at Detroit, Michigan. Defendant General Motors Corporation is duly authorized to do business in the State of Texas, and may be served with process by serving its registered agent for service, C. T. Corp System, 350 North St. Paul Street, Dallas, Texas 75201.

Defendant Saturn of Tyler, LTD is a limited partnership duly authorized to do business in the State of Texas and may be served with process by serving its registered agent for service, John Java, 3916 S. Southwest Loop 323, Tyler, Texas 75701.

III.

Plaintiffs bring this action for monetary damages under §71.001 et. seq. of the Texas Civil Practice and Remedies Code, better known as the wrongful death statute, and §71.021 of the aforesaid Texas Civil Practice and Remedies Code, better known as the Texas survival statute. Plaintiff (b) (6) is a statutory beneficiary as specifically provided in those respective statutes and is thereby entitled and authorized to bring this action on behalf herself individually and on behalf of the estate of her deceased son, (b) (6). Plaintiff

(b) (6) is the father of the deceased and is also a statutory beneficiary under the aforementioned statutes. Plaintiff (b) (6) as next friend for her minor daughters, (b) (6) is also authorized under Texas law to bring this action on behalf of her minor daughters as they are also statutory beneficiaries under the aforementioned statutes and entitled to bring this action.

IV.

This is a products liability cause of action which arises from design, manufacturing and marketing defects of a certain 2004 year model Saturn Ion automobile designed, manufactured and marketed by Defendant General Motors Corporation, and which was ultimately sold by Defendant Saturn of Tyler to the Plaintiff (b) (6). This particular automobile was being utilized as a passenger vehicle at the time of the occurrence made the basis of this lawsuit.

At all times mentioned herein, Defendant General Motors Corporation was engaged in the business of designing, manufacturing and marketing automobiles to the general public throughout the United States, as well as, within the State of Texas through duly appointed dealers such as Defendant Saturn of Tyler, LTD.

V.

The Defendant General Motors Corporation designed, manufactured, assembled and placed into the stream of commerce the 2004 year model Saturn Ion, vehicle identification number 1G8AJ52F14Z (b) (6) (hereinafter referred to as "product"), which reached Plaintiff (b) (6) in the same or substantially the same condition in which it was sold. Upon purchase by the Plaintiff (b) (6) the production in question was represented to be safe and free from latent defects.

Specifically, when the product in question was delivered to Plaintiff (b) (6) it was represented to be equipped with a frontal air bag restraint system installed in the product for the purpose of protecting the front seat occupants from traumatic injuries ordinarily associated with and occasioned from frontal collisions of such a magnitude that would cause said restraint system to be activated and the air bags to deploy. This system was defectively designed, manufactured, assembled and marketed in that the above-referenced frontal air bag restraint system was inherently dangerous as designed, manufactured, assembled and marketed in that it failed to activate and deploy when the subject product was involved in a catastrophic and fatal head on collision.

Pleading further, these Plaintiffs would show that Defendant Saturn of Tyler, LTD is a duly authorized dealer of Saturn automobiles, and in particular the subject automobile or product made the basis of this lawsuit. The subject vehicle was sold to Plaintiff (b) (6) early in 2004 and had to be taken in to said Defendant's dealership on numerous occasions during the calendar year 2004 for warranty and miscellaneous repair work. It is unknown at this time whether Defendant Saturn of Tyler, LTD during any of the warranty repair work on the subject vehicle altered or modified the air bag restraint system in such a manner as to keep it from properly functioning in the event of a catastrophic head on collision such as occurred on or about November 15, 2004. As a basis of liability to this Defendant Plaintiffs would show that this Defendant violated Texas Civil Practice and Remedies Code, §82.003 (a)(2), for which liability attaches to Defendant Saturn of Tyler, LTD.

VI.

Plaintiffs bring this lawsuit to recover damages arising out of a catastrophic head on collision in involving the subject 2004 Saturn Ion automobile that occurred on or about November 15, 2004. On that date, the deceased (b) (6) was a front seat passenger in the 2004 Saturn Ion automobile as more specifically described hereinabove. At the time and on the occasion in question this Saturn Ion automobile was being driven by one (b) (6). At approximately 11:30 a.m. on the morning of November 15, 2004 (b) (6) (b) (6) and (b) (6) were traveling in the subject product in a northbound direction on Van Zandt County Road number 4106 when the driver of said vehicle lost control of same and crashed into a tree causing extensive front end damage to said vehicle. The frontal air bags failed to deploy, even though the crash itself was more than sufficient in magnitude to activate the air bag restraint system and cause deployment of said air bags. The driver (b) (6) (b) (6) was injured significantly in this accident and the body of (b) (6) was caused to be thrown violently against the interior of the vehicle and in particular the dash and front window shield. The violent nature of the collision and the force exerted from the collision caused the said (b) (6) to sustain serious injuries to his body as a whole and in particular caused him to sustain fatal blunt force traumatic injuries to his head, neck, chest and torso. As stated these injuries were extensive and caused the death of (b) (6).

As a result of the failure of the frontal air bags to deploy in this catastrophic collision, (b) (6) sustained the above referenced injuries that caused his untimely death.

VII.

STRICT LIABILITY

Defendant General Motors Corporation is strictly liable to Plaintiffs for designing, manufacturing, assembling and placing into the stream of commerce the 2004 Saturn Ion which was unreasonably dangerous for its reasonably foreseeable uses because of the following design and manufacturing defects, each of which was a producing cause of the death of (b) (6)

(b) (6), to wit:

- (1) The frontal air bag restraint system failed to activate and deploy when the product in question was subjected to a frontal catastrophic collision such as was occasioned on November 15, 2004.

The Plaintiffs, therefore invoke the Doctrine of Strict Liability, §402A RESTATEMENT (2nd) OF TORTS, as adopted by the Supreme Court of Texas.

VIII.

NEGLIGENCE

Defendant was negligent in the design, manufacture, assembly and marketing of the product in question. It knew, or in the exercise of ordinary care should have known, that the subject 2004 Saturn Ion automobile was defective and unreasonably dangerous to those persons likely to use the product for the purpose and in the manner for which it was intended to be used. Defendant was negligent in the particulars set forth in this and the preceding paragraphs and such negligence was a proximate cause of the occurrence in question.

Pleading further Plaintiffs would show that in addition to the design, manufacture, installation, and marketing defects as set forth above the Defendant Saturn of Tyler, LTD either

altered, modified or changed the frontal air bag restraint system on the subject product in such a manner to cause it to fail to activate in a frontal crash situation. This Defendant has subjected itself to liability under the Texas Civil Practice and Remedies Code, §82.003(a)(2) as specifically referenced hereinabove. Such alteration, modification or change to the product in question constitutes negligence and a proximate cause of the death of (b) (6).

These Defendants owed (b) (6), deceased, the duty of reasonable care under the laws of the State of Texas. Defendants have violated their duty and were negligent in the particulars as set forth hereinabove.

Each of the above mentioned acts or omissions was a proximate cause of the fatale injuries sustained by (b) (6) and the damages occasioned to these Plaintiffs.

IX.

BREACH OF WARRANTY

Defendant General Motors Corporation, by and through the sale of the product in question, expressly and impliedly warranted to the public generally, and to the Plaintiffs and Decedent, (b) (6) specifically that the vehicle's frontal air bag restraint system was fit for the purposes for which it was intended.

The product was used as alleged hereinabove, and reliance was made upon the express and implied warranties made by Defendant General Motors Corporation. Contrary hereto, the frontal air bag restraint system did not work, was not functional and therefore was not fit for its intended use, rendering the product in question unreasonably dangerous.

Defendant General Motors Corporation breached the express and implied warranties by the failure of the frontal air bag restraint system to function, operate and deploy in the type of frontal catastrophic collision as specifically alleged hereinabove.

Defendants' breach of warranties and the above mentioned defects rendered the product unreasonable dangerous and a proximate cause and a producing cause of the fatal injuries sustained by (b) (6), deceased and the resulting injuries sustained by Plaintiffs herein. Further, Defendants' conduct was done knowingly.

X.

MISREPRESENTATION

Defendant General Motors Corporation is also strictly liable to these Plaintiffs under §402B of the RESTATEMENT (2nd) of TORTS, in misrepresenting to the public that its' product was safe and without defect; which statement representation was false and involved a material fact concerning the character or quality of the product in question, and upon which representation Plaintiff (b) (6) and her deceased son, (b) (6) constructively relied, and which constituted a producing cause of the fatal injuries suffered by (b) (6) and to the damages sustained by all Plaintiffs.

XI.

DAMAGES

At the time of his untimely death (b) (6) was twenty-five years of age and had a reasonable life expectancy of seventy-six years according to the standard tables of mortality.

As a direct result of the catastrophic head on collision referenced hereinabove, (b) (6) (b) (6) suffered severe personal injuries to his body as a whole but more specifically suffered fatal blunt force trauma injuries to his neck and chest. In the period of time between the crash itself and his untimely death (b) (6) suffered extreme and excruciating physical pain, suffering and mental anguish. Additionally, in the period of time immediately preceding the fatal crash the deceased experienced pre-impact terror in light of the reality of the impending crash.

In addition to the physical pain, mental anguish and pre-impact terror sustained by (b) (6) (b) (6), deceased he also incurred medical expenses and reasonable and necessary funeral and burial expenses reasonably suited to his station in life.

The estate of (b) (6) is entitled to recover the damages he could have recovered had he lived under the direction of §71.021 of the Texas Civil Practice and Remedies Code, better known as the Texas Survival Statute. Plaintiff (b) (6) is a statutory beneficiary and heir under said statute and is therefore entitled to bring this action for the estate of (b) (6), deceased, on behalf of the heirs at law of the aforesaid deceased. Other than Plaintiff (b) (6) the other heirs at law of deceased are his father, Plaintiff (b) (6), and his two minor daughters, (b) (6).

Plaintiffs (b) (6) are the surviving parents of (b) (6) (b) (6), deceased. Under the Texas Wrongful Death Statute (§71.001 et. seq., TCPRC) the parents have a claim for the emotional pain, torment and suffering that each of them has sustained and will, in all reasonable probability experience in the future from the death of their beloved son. Each parent has also sustained the loss of the parent child relationship between

each of them and their adult child. This has resulted in the loss of love, comfort, companionship and society each would have in all probability received from their adult child had he lived.

At the time of his death [REDACTED] (b) (6) was survived by his minor daughters, [REDACTED] (b) (6), age eight years and [REDACTED] (b) (6) age seven years. These two children have lost the love, support, companionship and society that each would have, in all reasonable probability received from their father had he lived. Additionally, each of these children has sustained mental anguish and the emotional pain, torment, suffering and grief that each of them has, and in reasonable probability will, experience from the death of their beloved father.

Further, these two children have each sustained a pecuniary loss resulting from the untimely death of their father as well as a loss of inheritance from the untimely death of their father.

XII.

The estate of [REDACTED] (b) (6), deceased and these Plaintiffs have sustained damages far in excess of the minimum jurisdictional limits of this Court and for all such damages as well be shown to this Court and jury these seek judgment of this court.

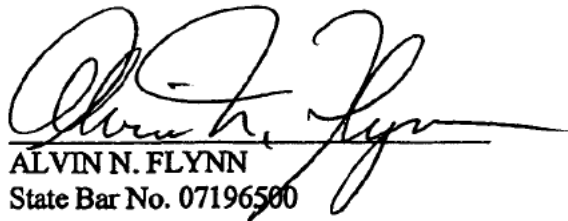
PRAYER

WHEREFORE, Plaintiffs pray that Defendants General Motors Corporation and Saturn of Tyler, LTD be duly cited to appear and answer herein; and that upon a trial of this cause, Plaintiffs recover to wit:

1) judgment against Defendants for Plaintiffs' damages as set forth above, in an amount far in excess of the minimum jurisdictional limits of this Court;

- 2) interest on said judgment at the legal rate from date of judgment;
- 3) prejudgment interest on all of Plaintiffs' damages as allowed by law;
- 4) costs of Court; and,
- 5) such other and further relief to which Plaintiffs may show themselves justly entitled.

Respectfully submitted,



ALVIN N. FLYNN
State Bar No. 07196500

LAW OFFICES OF ALVIN N. FLYNN
100 East Ferguson, Suite 812
Post Office Box 308
Tyler, Texas 75710-0308
903.593.2476 Phone
903.593.1834 Fax

ATTORNEY FOR PLAINTIFFS

TEXAS PEACE OFFICER'S ACCIDENT REPORT ST-3 (REV. 1/1/80)

MAIL TO: ACCIDENT RECORDS, TEXAS DEPARTMENT OF PUBLIC SAFETY, PO BOX 4087, AUSTIN TX 78773-0087

PLACE WHERE ACCIDENT OCCURRED CITY OR TOWN VAN ZANDT		LOC. NO.	
COUNTY VAN ZANDT		DO NOT WRITE IN THIS SPACE	
IF ACCIDENT WAS OUTSIDE CITY LIMITS INDICATE DISTANCE FROM NEAREST TOWN 4.9 MILES		DPS NO.	
NORTH ☐ EAST ☐ WEST ☐ SOUTH ☐		LOC. CODE	
CITY OR TOWN Canton		SEVERITY	
ROAD ON WHICH ACCIDENT OCCURRED INTERSECTING STREET OR RR X'ING NUMBER		FAT REC	
STREET OR ROAD NAME VZCR 4106		DR REC	
ROUTE NUMBER ON STREET CODE			
CONSTR. ☐ YES SPEED ZONE ☐ NO LIMIT 40			
CONSTR. ☐ YES SPEED ZONE ☐ NO LIMIT			
NOT AT INTERSECTION 0.4		CR	
DATE OF ACCIDENT November 15, 2004			
DAY OF WEEK Monday			
HOUR 11:50			
☐ A.M. ☐ P.M.			

UNIT NO. 1 - MOTOR VEHICLE		VEH IDENT NO 1G8AJ52F14Z		IF BODY STYLE = VAN OR BUS, INDICATE SEATING CAPACITY	
YEAR MODEL 2004		COLOR & MAKE Tan Saturn		MODEL NAME	
DRIVER'S NAME		BODY STYLE 4 door		LICENSE PLATE 05 TX	
DRIVER'S LICENSE TX		CLASS TYPE C		PHONE NUMBER	
DOB		RACE W		SEX F	
OCCUPATION Nurse's Aid					
SPECIMEN TAKEN (ALCOHOL / DRUG ANALYSIS)		ALCOHOL / DRUG ANALYSIS RESULT Pending		PEACE OFFICER, EMB DRIVER, FIREFIGHTER ON EMERGENCY? ☐ YES ☐ NO	
1-BREATH 2-BLOOD 3-OTHER 4-NONE 5-REFUSED					
LESSIE ☐					
OWNER ☒ Same as above					
LIABILITY ☒ YES		VEHICLE DAMAGE RATING 12-FD-7			
INSURANCE ☐ NO		INSURANCE COMPANY NAME Farmers			
		VEHICLE DAMAGE RATING 11-LD-4			

UNIT NO. 2 TOWED ☐ PEDESTRIAN ☐ OTHER ☐		VEH IDENT NO		IF BODY STYLE = VAN OR BUS, INDICATE SEATING CAPACITY	
YEAR MODEL		COLOR & MAKE		MODEL NAME	
DRIVER'S NAME		BODY STYLE		LICENSE PLATE	
DRIVER'S LICENSE		CLASS TYPE		PHONE NUMBER	
DOB		RACE		SEX	
OCCUPATION					
SPECIMEN TAKEN (ALCOHOL / DRUG ANALYSIS)		ALCOHOL / DRUG ANALYSIS RESULT		PEACE OFFICER, EMB DRIVER, FIREFIGHTER ON EMERGENCY? ☐ YES ☐ NO	
1-BREATH 2-BLOOD 3-OTHER 4-NONE 5-REFUSED					
LESSIE ☐					
OWNER ☐					
LIABILITY ☐ YES		VEHICLE DAMAGE RATING			
INSURANCE ☐ NO		INSURANCE COMPANY NAME			
		POLICY NUMBER			

DAMAGE TO PROPERTY OTHER THAN VEHICLES					
None					
OBJECT					
NAME AND ADDRESS (STREET, CITY, STATE, ZIP)					
VEH FROM CORN					
DAMAGE SEVERITY					
LIGHT CONDITION 1		WEATHER 1		SURFACE CONDITION 1	
TYPE ROAD SURFACE 1		DESCRIBE ROAD CONDITIONS (INVESTIGATOR'S OPINION)			
1-DAYLIGHT		1-RAINING / CLOUDY		1-DRY	
2-DARK		2-SMOKE		2-WET	
3-DARK-NOT LIGHTED		3-SLEETING		3-MUDDY	
4-DARK-LIGHTED		4-HIGH WINDS		4-SNOWY / IGY	
5-DUSK		5-OTHER		5-OTHER	
1-DRY		1-DRY		1-BLACKTOP	
2-WET		2-WET		2-CONCRETE	
3-MUDDY		3-MUDDY		3-GRAVEL	
4-SNOWY / IGY		4-SNOWY / IGY		4-SHELL	
5-OTHER		5-OTHER		5-DIRT	
6-OTHER		6-OTHER		6-OTHER	

IN YOUR OPINION, DID THIS ACCIDENT RESULT IN AT LEAST \$1000.00 DAMAGE TO ANY ONE PERSON'S PROPERTY? ☒ YES ☐ NO

CHARGES FILED		CITATION NUMBER	
NAME	CHARGE Intoxication Manslaughter	H489874	
NAME	CHARGE Drive not secured by seatbelt	CITATION NUMBER H489875	
	CHARGE Unsafe Speed		

TIME NOTIFIED OF ACCIDENT 11/15/04		12:10 P M NOW		Van Zandt Co. S.O.		TIME ARRIVED AT SCENE OF ACCIDENT 11/15/04		12:23 P M	
TYPED OR PRINTED NAME OF INVESTIGATOR Bob Asplund		DATE REPORT MADE 11/15/04		IS REPORT COMPLETE ☐ YES ☒ NO					
SIGNATURE OF INVESTIGATOR		ID NO. 11174		DEPARTMENT DPS/THP		DIST. / AREA 1B8			

EDUCATION (SOL)	EJECTED	CODE FOR TYPE RESTRAINT USED	AIRBAG CODE	HELMET USE	CODE FOR INJURY SEVERITY	COMPLETE IF CASUALTY NOT IN MOTOR VEHICLE
INDICATE IF PERSON WAS IN CONTACT WITH PERSONS BEING PROTECTED FROM INJURY BY AIR ATTACHMENT, OR PROTECTOR, PROTECTOR, SURGEON, PRIVATE INVESTIGATOR, OR ANY OTHER PERSON REGISTERED OR LICENSED BY A HEALTH CARE REGULATORY AGENCY	A - NOT APPLICABLE Y - YES N - NO P - PARTIALLY U - UNKNOWN	A - SEATBELT & SHOULDER STRAP B - SEATBELT & NO SHOULDER STRAP C - CHILD RESTRAINT D - SHOULDER STRAP ONLY E - NONE	Y - DEPLOYED N - NO DEPLOYMENT U - UNKNOWN IF DEPLOYED	1 - WORKMANSHIP 2 - WORKMANSHIP DAMAGED 3 - WORKMANSHIP DAMAGED 4 - NOT WORKMANSHIP 5 - UNKNOWN	A - RATED B - RATED AT THE SCENE C - RATED AT THE SCENE D - RATED AT THE SCENE E - RATED AT THE SCENE	1 - BLOOD 2 - BLOOD 3 - OTHER 4 - BLOOD 5 - BLOOD

UNIT NO. 1	12-PD-7	TOWED DUE TO DAMAGE	VEHICLE REMOVED TO	R M Wrecker		
DAMAGE RATING	11-JD-4	☐ YES ☐ NO	BY	R M Wrecker		
COMPLETE ALL DATA ON ALL OCCUPANTS' NAMES, POSITIONS, RESTRAINTS USED, ETC.; HOWEVER, IT IS NOT NECESSARY TO SHOW ADDRESSES UNLESS KILLED OR INJURED						
OCCUPANT'S POSITION	NAME (LAST NAME FIRST)	ADDRESS (STREET, CITY, STATE, ZIP)	SEX	AGE	DOB	INJURY CODE
DRIVER	SEE FRONT	Canton, TX	N	Y	N	F A
RF		Canton, TX	N	N	N	M K

UNIT NO. 2	COMPLETE ONLY IF UNIT NO. 2 WAS A MOTOR VEHICLE	TOWED DUE TO DAMAGE	VEHICLE REMOVED TO
DAMAGE RATING		☐ YES ☐ NO	BY
COMPLETE ALL DATA ON ALL OCCUPANTS' NAMES, POSITIONS, RESTRAINTS USED, ETC.; HOWEVER, IT IS NOT NECESSARY TO SHOW ADDRESSES UNLESS KILLED OR INJURED			
OCCUPANT'S POSITION	NAME (LAST NAME FIRST)	ADDRESS (STREET, CITY, STATE, ZIP)	SEX
DRIVER	SEE FRONT		

PEDESTRIAN / BICYCLIST ETC.	CASUALTY NAME (LAST NAME FIRST)	CASUALTY ADDRESS (STREET, CITY, STATE)	SEX	AGE	DOB	INJURY CODE

DISPOSITION OF KILLED AND INJURED			IF AMBULANCE USED, SHOW		
ITEM NUMBER	TAKEN TO	BY	TIME NOTIFIED	TIME ARRIVED AT SCENE	NO. ATTENDANTS INC. DRIVER
1	Trinity Mother Frances - Tyler, TX	Champion EMS	12:10P	12:20P	2
2	Dallas Co. Medical Examiner	Eubank Funeral Home	-	-	-

ITEM NUMBER	DATE OF DEATH	TIME OF DEATH	ITEM NUMBER	DATE OF DEATH	TIME OF DEATH	ITEM NUMBER	DATE OF DEATH	TIME OF DEATH
2	11/15/2004	1:45P						

INVESTIGATOR'S NARRATIVE OPINION OF WHAT HAPPENED (ATTACH ADDITIONAL SHEETS IF NECESSARY)

Unit #1, northbound on VZCR 4106, veered off of the roadway to the left. Unit #1 struck the brush line, causing damage along the left side, and continued northbound. Unit #1 struck a tree head-on, causing the rear-end to leave the ground. The vehicle pivoted on the front end, coming to rest on the driver's side. The passenger, sitting right front, was apparently killed on impact. Driver was partially ejected, with her leg caught under the steering wheel. The front end was severely damaged and the windshield was smashed. Driver was intoxicated by illegal drugs.

DIAGRAM ☐ ONE WAY ☒ TWO WAY ☐ DIVIDED

INDICATE NORTH

VZCR 4106

TREE

BRUSH LINE

FENCE

- NOT TO SCALE -

FACTORS AND CONDITIONS LISTED ARE THE INVESTIGATOR'S OPINION			OTHER FACTORS / CONDITIONS MAY OR MAY NOT HAVE CONTRIBUTED			TRAFFIC CONTROL		
1. UNIT 1	68	60	UNIT 1	-	-	1. NO CONTROL OR INOPERATIVE	2. TURN SIGNAL	3. NO PRECISE ZONE
UNIT 2			UNIT 2			1. STOP AND GO SIGNAL	2. TURN SIGNAL	3. OTHER FACTORS

1. ANIMAL ON ROAD - DOMESTIC	19. DISTRACTION IN VEHICLE	37. FAILED TO YIELD RIGHT - TURNING LEFT	65. PAVED WITHOUT LIGHTS
2. ANIMAL ON ROAD - WILD	20. DRIVER INATTENTION	38. FAILED TO YIELD RIGHT - TURN ON RIGHT	66. PAVED IN NO PASSING ZONE
3. BACKED WITHOUT SAFETY	21. DROVE WITHOUT HEADLIGHTS	39. FAILED TO YIELD RIGHT - YIELD AHEAD	67. PAVED ON RIGHT SHOULDER
4. CHANGED LANE WHEN BLENDED	22. FAILED TO CONTROL SPEED	40. FATIGUED OR ASLEEP	68. PEDESTRIAN FAILED TO YIELD RIGHT TO VEHICLE
5. DEFECTIVE OR NO HEADLIGHTS	23. FAILED TO REMAIN IN SHOULDER LANE	41. FAULTY ENGINE ACTION	69. SPEEDING - UNLAWFUL (UNDER LIMIT)
6. DEFECTIVE OR NO STOP LAMPS	24. FAILED TO GIVE HALF OF ROADWAY	42. FIRE IN VEHICLE	70. SPEEDING - OVER LIMIT
7. DEFECTIVE OR NO TAIL LAMPS	25. FAILED TO GIVE HALF OF ROADWAY	43. FLEWING OR EVADING POLICE	71. TURNED IMPROPERLY - TURN CORNER ON LEFT
8. DEFECTIVE OR NO TURN SIGNAL LAMPS	26. FAILED TO YIELD TO LEFT SAFELY	44. FOLLOWED TOO CLOSELY	72. TURNED IMPROPERLY - TURN CORNER ON RIGHT
9. DEFECTIVE OR NO TURN SIGNALS	27. FAILED TO PASS TO RIGHT SAFELY	45. HAD BEEN DRIVING	73. TURNED IMPROPERLY - WIDE CORNER
10. DEFECTIVE OR NO HEADLIGHTS	28. FAILED TO STOP ON ONE-WAY HIGHWAY	46. IMPROPERLY DRIVEN (EXPLAIN IN NARRATIVE)	74. TURNED IMPROPERLY - WIDE CORNER
11. DEFECTIVE STOPPING MECHANISM	29. FAILED TO STOP AT PROPER PLACE	47. ALL (EXPLAIN IN NARRATIVE)	75. UNDER INFLUENCE - ALCOHOL
12. DEFECTIVE OR BLENDED TIRE	30. FAILED TO STOP FOR "YIELD" SIGN	48. IMPROPERLY DRIVEN (EXPLAIN IN NARRATIVE)	76. UNDER INFLUENCE - DRUGS
13. DEFECTIVE TRAILER HITCH	31. FAILED TO STOP FOR TRAFFIC	49. IMPROPER START FROM PARKED POSITION	77. UNKNOWN DEF. APPROACHING OR IN INTERSECTION
14. DISABLED IN TRAFFIC LANE	32. FAILED TO YIELD RIGHT - EMERGENCY VEHICLE	50. LONG NOT REQUIRED	78. UNKNOWN DEF. APPROACHING OR IN INTERSECTION
15. DISOBEYED STOP AND GO SIGNAL	33. FAILED TO YIELD RIGHT - OPEN INTERSECTION	51. OTHER FACTOR INTO TRAFFIC LANE	79. UNKNOWN DEF. APPROACHING OR IN INTERSECTION
16. DISOBEYED STOP AND GO SIGNAL	34. FAILED TO YIELD RIGHT - PRIVATE DRIVE	52. OTHER FACTOR INTO TRAFFIC LANE	80. UNKNOWN DEF. APPROACHING OR IN INTERSECTION
17. DISOBEYED TURN SIGNAL AT INTERSECTION	35. FAILED TO YIELD RIGHT - STOP SIGN	53. OTHER FACTOR INTO TRAFFIC LANE	81. UNKNOWN DEF. APPROACHING OR IN INTERSECTION
18. DISOBEYED WARNING SIGN AT CONSTRUCTION	36. FAILED TO YIELD RIGHT - TO PEDESTRIAN	54. OTHER FACTOR INTO TRAFFIC LANE	82. UNKNOWN DEF. APPROACHING OR IN INTERSECTION
		55. OTHER FACTOR INTO TRAFFIC LANE	83. UNKNOWN DEF. APPROACHING OR IN INTERSECTION

**TEXAS DEPARTMENT OF PUBLIC SAFETY
HIGHWAY PATROL**

DATE : 11/15/04 INVESTIGATED BY : PETE ASPLUND

TIME : 11:50 AM MEASURED BY : PETE ASPLUND

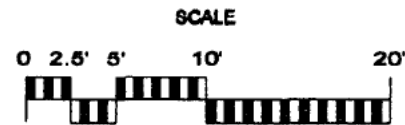
LOCATION : VAN ZANDT COUNTY ROAD 4106

DRAWN BY : JASON MATURA

COUNTY : VAN ZANDT

DRIVER OF UNIT #1 : [REDACTED]

KILLED : [REDACTED]



GAUGE

TREE

VZCR 4106

